

Part 32 Expanding Distribution Pathways for Microsources

The NRC regulates the distribution of byproduct material for medical use under 10 CFR part 32. Specifically, § 32.72 governs the commercial distribution of radioactive drugs, while § 32.74 governs the distribution of sources and devices containing byproduct material. However, recent developments in clinical practice have highlighted the need to allow both distribution pathways to be available to microsources, which include radioactive microspheres used for intravascular brachytherapy. The proposed amendments to 10 CFR part 32 in this rulemaking would allow additional authorizations for the preparation and distribution of radioactive microspheres.

Microspheres are regulated by the FDA as medical devices and they are not considered radioactive drugs. As such, manufacturing, preparation and transfer of microsources is not addressed under § 32.72 and must be authorized under § 32.74, even though the radiation safety considerations between microsources and radioactive drugs are similar. This requirement has become a burden following the implementation of United States Pharmacopeia (USP) General Chapter <825>, which included standards for the preparation, compounding, dispensing, and repackaging for radioactive microspheres similar to radiopharmaceuticals.

The USP sets quality, purity, strength, and identity standards for medicines, food ingredients, and dietary supplements used in the United States. USP standards are enforceable by the FDA and State Boards of Pharmacy. As such, USP standards are widely adopted in healthcare and pharmaceutical practice. USP <825> requires that sterile radioactive microspheres be prepared in International Organization of Standardization (ISO) Class 5 environments if they are to be used more than one hour after puncture. To comply with these requirements and accommodate patient-specific treatment schedules, medical use licensees have increasingly relied on commercial radiopharmacies to prepare and distribute patient-ready doses of microspheres. As radiopharmacies historically focused their activities on radioactive drugs, they are licensed under § 32.72. However, the current regulatory framework does not authorize commercial radiopharmacies for preparing and distributing microspheres under § 32.72.

The proposed rule would revise § 32.72 to include microsources within its scope, which would allow commercial radiopharmacies that are licensed under this provision to prepare and distribute microspheres. In addition, the proposed rule would expand those who can use the § 32.72 pathway to any applicant who is legally authorized, under applicable Federal or State law, to manufacture, compound, prepare, or distribute radioactive drugs or medical devices to allow flexibility for future pathways allowed by states or the FDA to distribute radioactive drugs and medical devices safely.

The NRC is also proposing to revise § 32.74 to provide provisions specific to microsources, including microspheres. The revised language ensures clarity that licensees can use either § 32.72 or § 32.74 to distribute microsources. The amendments to § 32.74 also clarify that the regulation allows distribution to any licensee authorized to use the source or device under 10 CFR part 35 and does not limit distribution to specific types of medical facilities listed under specific subparts to avoid unnecessary limitations. A conforming change to § 30.32 would be made based on the changes in the structure of § 32.72.

These changes are intended to reduce regulatory burden and improve clarity for regulators and, radiopharmacy licensees, medical device manufacturing licensees, and medical licensees. By allowing both §§ 32.72 and 32.74 to serve as licensing pathways for the distribution of microsources, the NRC is allowing licensees to select the most appropriate regulatory framework based on their business model and operational needs. This flexibility supports compliance with USP <825>, enables timely access to microspheres for patient care, and maintains public health and safety.

Part 34 Reducing Anti-Competitive Barriers and Administrative Requirements for Industrial Radiography

The NRC's regulations in 10 CFR part 34 establish the specific requirements for industrial radiography. The proposed changes to 10 CFR part 34 in this rulemaking aim to provide greater flexibility in the use of codes and standards, clarify the two-person rule; and update prescriptive administrative requirements to allow for a more performance-based approach, while continuing to ensure the protection of public health and safety.

Current NRC regulations in § 34.20(a)(1) require that radiographic equipment meet the standards in ANSI N432–1980, “Radiological Safety for the

Design and Construction of Apparatus for Gamma Radiography.” ANSI N432 was incorporated into NRC regulations on January 10, 1990 (55 FR 843) because manufacturers of radiography equipment were not all consistently using ANSI N432, nor were they uniformly or fully implementing the performance criteria intended to improve radiation safety for workers. However, ANSI N432 has been superseded by ANSI N43.9–1991, “For Gamma Radiography—Specifications for Design and Testing of Apparatus.” Additionally, other applicable industry standards have also been developed. Pursuant to the SSDR program in § 32.210, radiographic exposure devices, source assemblies, and sealed sources are evaluated using accepted industry standards to provide reasonable assurance that the radiation safety properties of the source or device are adequate to protect health and minimize danger to life and property. The NRC is removing requirements that incorporate specific standards to stay current with the industry as these standards may become obsolete or superseded. The proposed rule would remove the prescriptive and outdated reference to ANSI N432–1980 and instead require that radiography devices, source assemblies, and sealed sources be evaluated and registered in the SSDR. Additionally, since § 34.20 also discusses associated equipment that is not evaluated under the SSDR, the proposed rule would also require that this equipment meets the manufacturers' specifications and instructions. Manufacturer specifications include design elements and criteria necessary for the safe function of the associated equipment. This change will conform § 34.20 with § 32.210 while continuing to ensure that radiography licensees use and maintain the radiography device, sealed source, and associated equipment in accordance with the industry standards and manufacturer requirements it was designed to meet. The removal of the incorporation by reference of an industry standard will also prevent this requirement from becoming superseded and needing to be revised in the future. Further § 34.20(a)(2) will remain to provide a pathway for licensees to use alternative standards on a case-by-case basis. Finally, NRC is proposing a conforming change to § 34.3 to define SSDR for 10 CFR part 34. These changes will ensure that radiation safety is maintained while reducing anti-competitive regulatory barriers and allowing for innovation in the design of radiography equipment.

On May 28, 1997, the NRC issued § 34.41(a) “Licenses for Industrial Radiography and Radiation Safety Requirements for Industrial Radiographic Operations,” commonly called “the two-person rule,” which requires a second qualified individual (radiographer or radiographer’s assistant) to be present during industrial radiography operations at temporary jobsites (TJS) (62 FR 28948). The purpose of the second individual is to provide immediate assistance when required and to prevent unauthorized entry into the restricted area.

Prior to 2021, the NRC had consistently interpreted § 34.41(a) to require both the radiographer and the second qualified individual to maintain direct observation when radiographic operations are being conducted at a TJS. Through operating experience, this interpretation was found to be unnecessary to protect public health and safety, and on June 1, 2021, the NRC reinterpreted the requirement (86 FR 29173).

Since 2021, NRC has interpreted § 34.41(a) such that the requirements contained in the sentence, “[t]he additional qualified individual shall observe the operation and be capable of providing immediate assistance to prevent unauthorized entry” are met if the second qualified individual is in sufficiently close proximity to the operation and sufficiently aware of the ongoing activities to be able to provide assistance or take charge when necessary and to prevent unauthorized entry. The second individual may perform other tasks nearby so long as they are cognizant of the site-specific circumstances when radiographic operations are in progress. In 2021, the NRC also determined that this interpretation makes § 34.41(a) consistent with the requirement in § 34.51 that at least one of the two individuals present at a TJS must “maintain direct observation of the operation,” the NRC discontinued planned rulemaking after determining that the reinterpretation resolved the issues raised in PRM–34–6 which requested that 10 CFR part 34 clarify requirements related to the responsibilities of the second individual required to be present during radiographic operations.

The proposed rule would combine the requirements in § 34.51 into § 34.41(a) to create a single, concise requirement regarding the availability and surveillance responsibilities of the qualified individuals performing industrial radiography at TJSs. This change seeks to eliminate ambiguity, allowing for technological innovation in

the implementation of the requirement, all while maintaining the integrity of the performance requirements. Combining § 34.41 and § 34.51 into a single simplified requirement enhances regulatory clarity by plainly aligning the requirement with the reinterpretation from 2021.

Part 34 of 10 CFR currently contains obsolete and overly prescriptive administrative requirements dating from its last significant revision in 1997 (62 FR 28948). Many of these requirements are not consistent with the NRC’s modern and performance-based approach to oversight. For example, the operational history of § 34.101(c), which requires notification when work activities at a TJS exceed 180 days, is unnecessary because the information is collected during routine inspections and does not provide value to the NRC’s performance based oversight program. The proposed rule would also reduce administrative burden on licensees by reducing the record keeping requirements in § 34.89(b) to remove duplicative records and by eliminating the notification requirement in § 34.101(c) which required licensees to notify the appropriate NRC Regional Office prior to exceeding 180 days at a TJS in a calendar year. The notification requirement can be eliminated because it can be reviewed through the routine inspection program.

The proposed rule would align leak testing requirements in § 34.27(c) with the SSDR. The sealed source leak testing frequency in the SSDR is based on the specifications of the sealed source specific to the design of the device for which it is used. This proposed change could reduce administrative burden on radiography licensees while ensuring that radiation safety is maintained and the leak testing frequency used is specific to the source model.

The proposed changes would further streamline 10 CFR part 34 by removing the obsolete legacy requirements related to previous rules that are no longer applicable and that were put in place to allow legacy incorporation for certain requirements in §§ 34.13(b)(2), 34.27(e), 34.41(d), 34.43(a)(2), (h), and (i).

The proposed revisions to 10 CFR part 34 would affect industrial radiographic license holders. The changes would reduce the administrative burden on license holders and the changes to streamline and clarify which would enable greater comprehension of the rule and increased compliance. Additionally, the changes to § 34.20 would allow greater flexibility to industrial radiography equipment manufacturers by removing the overly

prescriptive performance design criteria that the equipment must currently meet.

Part 39 Modernizing Well Logging Regulations

The NRC is proposing to streamline 10 CFR part 39 to by amending requirements related to instrument calibration intervals (§ 39.33(c)(1)), leakage testing for each sealed source (§ 39.35(c)(1)) and certain notification requirements.

Current NRC regulations in § 39.33(c)(1) require that the licensee shall have each radiation survey instrument calibrated at intervals not to exceed 6 months and after instrument servicing. The proposed rule would extend this frequency from 6 months to 12 months to be consistent with other regulations regarding the calibration of survey instruments found in 10 CFR parts 35 and 36. It is necessary that well logging licensees use equipment that has been calibrated to ensure accuracy of radiation emitted and associated radiation detection practices, however, this should be consistent with other regulations. This would ensure that radiation safety is maintained while decreasing administrative and financial burden on the licensee.

The NRC regulations in § 39.35(c)(1) require that each sealed source (except an energy compensation source (ECS)) must be tested for leakage at intervals not to exceed six months. However, other parts of this chapter allow for leak tests to be conducted at frequency outlined in the SSDR, which may list periods longer than six months. The proposed rule would align the leak testing provisions in other parts of NRC regulations and would be consistent with the intervals approved by the NRC or an Agreement State on the SSDR. It is necessary that well logging licensees ensure sealed sources are not leaking; however, this should be consistent with the source design specifications of the SSDR. This would ensure that radiation safety is maintained, and the leak testing frequency used is specific to the source model while reducing administrative and financial burden on the licensee.

Current NRC regulations in § 39.77(c)(1) require that the licensee shall notify the appropriate NRC Regional Office by telephone of the circumstances that resulted in the inability to retrieve the source and obtain NRC approval to implement abandonment procedures. These procedures are reviewed and approved by the NRC during the licensing process. The proposed rule would reduce administrative burden on applicants and licensees by eliminating

the notification requirement in § 39.77(c)(1). The notification requirement can be eliminated because it is not needed for the licensee to implement operating and emergency procedures for abandonment that have already been approved by the NRC during the licensing process. The NRC's approval is for the licensee to implement the procedures that were approved during licensing, which is unnecessary, because the NRC's approval at the time of notification does not change the previously approved procedures. The removal of § 39.77(c)(1) would eliminate the notification and duplicative approval process for implementing abandonment procedures.

Part 150 Modernizing Requirements for Agreement State Licensees in Part 150

The proposed changes 10 CFR part 150 concern (1) regulation of special nuclear material of low strategic significance (SNM–LSS), and (2) reciprocity, which allows the NRC to recognize Agreement State licenses in certain circumstances, and vice versa.

First, consistent with Section 274 of the AEA, Agreement States may assume regulatory authority over SNM in quantities not sufficient to form a critical mass, including SNM–LSS. SNM–LSS includes gram quantities of plutonium or uranium-233 or uranium-235, or certain combinations of the three. These materials are used in research or in the manufacture of certain radiation detectors. Currently, there are 10 Agreement State licensees that possess SNM of low strategic significance (SNM–LSS). While otherwise Agreement State licensees, the NRC reserved regulation over SNM–LSS under its common defense and security authority. Thus, Agreement State licensees possessing SNM–LSS must follow § 73.67 pursuant to § 150.14.

Prior to 2023, the NRC had not exercised any oversight over Agreement State licensees for compliance with § 73.67. On March 6, 2023, a Temporary Instruction (TI) 2800/044, “Assessment of Physical Protection Requirements under § 150.14 For Agreement State Licensee Processing, Using, or Transporting Special Nuclear Material of Low Strategic Significance,” was issued to evaluate, through inspection, whether Agreement State licensees had adequate physical protection processes and procedures in place for the possession, use, and transport of SNM–LSS consistent with the requirements of § 73.67. The NRC inspectors identified, through TI 2800/044 inspections, that Agreement State licensees in possession

of SNM–LSS store the material in secure areas where other radioactive materials are stored. Considering the low safety and security significance of SNM–LSS and the results of TI 2800/044 inspections, the NRC determined that security requirements in § 20.1801 “Security of stored material” and § 20.1802 “Control of material not in storage” are adequate to secure SNM–LSS.

The current regulatory approach for SNM–LSS Agreement State licensees means that these licensees are subject to oversight by both the NRC and their Agreement State regulator (NRC currently oversees physical protection of SNM–LSS and the Agreement State oversees control of radiation hazards associated with the SNM to ensure adequate protection of public health and safety). In addition, the NRC does not have a pathway to recover inspection costs from these Agreement State licensees and the additional cost for these inspections is shouldered by NRC licensees.

The proposed rule would delete § 150.14, which requires Agreement State licensees that possess SNM–LSS to meet the physical protection requirements in § 73.67. The deletion of § 150.14 would affect Agreement State licensees possessing SNM–LSS by removing the requirement to implement the physical protection requirements in § 73.67. Under this change, the NRC would no longer have oversight of SNM–LSS in Agreement States and the Agreement States would continue to maintain oversight of the security of this material under their current programs based on security requirements found in 10 CFR part 20. There would also be a minimal resource savings for the NRC by no longer having regulatory oversight of this requirement.

The proposed rule also addresses reciprocity, which is the NRC's recognition of Agreement State licenses for work performed in areas of NRC jurisdiction, without the licensee having to obtain a specific license from the NRC. Under reciprocity, the NRC grants a GL to Agreement State licensees for work in NRC jurisdiction for periods not exceeding 180 days in a calendar year (except for activities performed in offshore waters which does not have a time period limit). The provisions in § 150.20 require a specific license from an Agreement State as the basis for the GL to be granted. Areas of NRC jurisdiction include non-Agreement States, areas of exclusive Federal jurisdiction, and offshore waters. The term reciprocity is also used in Agreement States to identify Agreement State recognition of an NRC license and

licenses from other Agreement States for work performed in their jurisdiction. Some types of activities conducted under reciprocity include radiography, portable gauge use, well logging, leak testing, and calibration.

Activities conducted by Agreement State licensees in an NRC jurisdiction must meet the GL provisions of § 150.20, “Recognition of Agreement State Licenses.” Pursuant to this provision, prior to engaging in licensed activities an agreement state licensee must provide an NRC Form 241 “Report of Proposed Activities in Non-Agreement States,” a copy of its Agreement State specific license, and the appropriate fee as prescribed in § 170.31. Currently, Agreement State licensees provide these materials at least 3 days before engaging in an activity for the first time in a calendar year. Additionally, Agreement State licensees must file an amended NRC Form 241 to request approval for changes in work locations, radioactive materials, or work activities different from the initial request. Work performed under reciprocity is limited to 180 days in any calendar year, except for offshore activities, which are authorized for an unlimited period in the year. The NRC has published guidance in NUREG–1556, Volume 19, “Guidance for Agreement State Licensees About NRC Form 241 “Report of Proposed Activities in Non-Agreement States, Areas of Exclusive Federal Jurisdiction, or Offshore Waters.”

Between 2020 and 2024, the NRC annually processed on average 180 initial reciprocity filings and 1,386 amended reciprocity filings. Most initial reciprocity requests create a significant workload on NRC regional staff to review and approve the requests within the three-day time window. The majority of, if not all, reciprocity initial applications are approved. Additionally, there is an administrative burden on the licensee to ensure timely filing for initial reciprocity and ensure that amended forms are filed when required (i.e., changes in work location, radioactive material, or different work activities).

The information collected on NRC Form 241 provides the NRC an opportunity for oversight including the conduct of inspections. The NRC conducts approximately 21 of these inspections each year. Each year, NRC staff processes hundreds of reciprocity amendments related to offshore work, mostly for changes in location. Due to logistical challenges and expense required to perform inspections offshore, the NRC has not performed

any inspection of offshore work in several years.

The NRC is proposing to revise § 150.20(b)(1) to reduce the notification time for submitting an initial reciprocity filing from three days before engaging in an activity to the day of the activity. The revision would also delete § 150.20(b)(1)(i)–(iii), which currently allows for submittals with less than three days for emergent reasons, as it would be superfluous. The proposed revisions to § 150.20(b)(1) would allow licensees greater flexibility in scheduling licensed activities that require reciprocity with minimal impact on public health and safety. This change would affect Agreement State licensees performing work in areas of exclusive Federal jurisdiction by reducing the administrative burden to file for reciprocity prior to conducting work activities. Specifically, for reciprocity submitted less than three days prior to engaging in the initial work activities, Agreement State licensees would no longer be required to provide additional justification regarding the emergent nature of the work.

For amended reciprocity filings pursuant to § 150.20(b)(2), the proposed revisions would remove the requirement that Agreement State licensees engaging in activities offshore amend the NRC Form 241 for changes in work locations. This proposed change would affect Agreement State licensees working in offshore waters by significantly decreasing the number of amended NRC Form 241s submitted. Correspondingly, this change would also lessen the administrative burden on NRC staff by reducing the number of NRC Form 241s that are required to be processed.

Finally, to allow SGLs from Agreement States to be recognized by the NRC for the purposes of reciprocity, the proposed rule would revise §§ 150.20(a)(1), 150.20(a)(2), 150.20(b), 150.20(b)(1), and 150.20(b)(5) to include SGLs from Agreement States in addition to specific licenses throughout the requirement. These changes would allow Agreement State licensees, that have been granted an SGL, to work in NRC jurisdiction for up to 180 days without obtaining a specific license or SGL from the NRC. This would ensure that SGLs are not precluded from the ability to use the provisions of § 150.20 which would ensure parity between businesses conducting similar licensed activities but operating under a standard general licensees or specific license.

V. Specific Requests for Comments

The NRC is seeking feedback from the public on the proposed rule. We are particularly interested in comments and

supporting rationale from the public on the following:

- The NRC is seeking comments on how many persons that currently possess a specific license for portable gauge activities, fixed gauge activities, limited medical uses, analytical equipment uses, and in vitro testing would transition to a SGL that is described in the changes to 10 CFR part 31 subpart C. The NRC is also seeking comments on the costs and the benefits of the new SGL. Please provide a basis for your response.
- The NRC is seeking comments on possible impacts to small entities. The regulations in § 2.810, “NRC size standards,” provide specific size standards to determine whether a licensee qualifies as a small entity in its regulatory programs.
- As part of the wholesale review of regulations the NRC reviewed all reporting and notification requirements that reside within 10 CFR parts 30–39. The NRC is proposing changes to some of these requirements as part of this rulemaking. During the review, the NRC considered revising notification and reporting requirements in § 30.50(b)(2) to exclude the reporting for certain circumstances that fixed gauge licensees may encounter. This requirement currently requires a 24-hour notification and a 30-day written report for a variety of incidents including when a fixed gauge shutter is found to be inoperable and stuck in the open position. During the review, the NRC considered whether the reporting of fixed gauges with stuck shutters in the open position, when the open position is the normal operating mode, and the stuck position has been found by the licensee to pose no radiation hazard to workers, the public, or the environment was necessary. The NRC considered exploring whether it could issue a generic communication to exclude these events by reinterpreting what is meant in § 30.50(b)(2)(ii) by “the equipment is required to be available and operable when it is disabled or fails to function.” Alternatively, the NRC considered revising § 30.50 to provide the exclusion for these circumstances related to fixed gauges. Ultimately, the NRC determined that the impacts to the wide range of circumstances that are reported under § 30.50 warrants further review to ensure all consequences are understood. The NRC is seeking comments on whether inoperable fixed gauges that operate with open shutters but have shutters stuck in the open position, that pose no radiation hazard, warrant reporting and notification to the NRC. If reporting and notifications are warranted, the NRC is seeking comments on the appropriate timeline

and content of the reports and notifications. Additionally, the NRC is seeking comments on what criteria, related to fixed gauges with stuck shutters, should be included to determine whether a hazard to the workers, the public, or the environment exists as a result of the stuck shutter. Please provide a basis for your response. Finally, the NRC is seeking comments on all event reporting and notification requirements in 10 CFR parts 30–34, 39, 40, and 150 related to the burden, content, and required timeframe associated with each report or notification. Please provide a basis for your response.

VI. Initial Regulatory Flexibility Analysis

As required by the Regulatory Flexibility Act of 1980, 5 U.S.C. 605(b), the Commission certifies that this rule, if adopted, would not have a significant economic impact on a substantial number of small entities. Therefore, in accordance with section 605(b), the NRC is not preparing a regulatory flexibility certification analysis. This proposed rule would affect a small number of “small entities” as defined by the Regulatory Flexibility Act or the size standards established by the NRC (§ 2.810), but it would not be a significant impact.

Any small entity subject to this regulation that determines, because of its size, it is likely to bear a disproportionate adverse economic impact should notify the Commission of this opinion in a comment that indicates—

- (a) The licensee’s size and how the proposed regulation would impose a significant economic burden on the licensee as compared to the economic burden on a larger licensee;
 - (b) How the proposed regulations could be modified to take into account the licensee’s differing needs or capabilities;
 - (c) The benefits that would accrue or the detriments that would be avoided if the proposed regulations were modified as suggested by the licensee;
 - (d) How the proposed regulation, as modified, would more closely equalize the impact of NRC regulations or create more equal access to the benefits of Federal programs as opposed to providing special advantages to any individual or group; and
 - (e) How the proposed regulation, as modified, would still adequately protect public health and safety.
- Comments should be submitted as indicated under the **ADDRESSES** caption.

VII. Regulatory Analysis

A. Introduction

The NRC has prepared a draft regulatory analysis on this proposed rule. The analysis examines the costs and benefits of the alternatives considered by the NRC. The NRC has preliminarily determined that the proposed action in this rule is expected to reduce regulatory burden and generate cost savings for licensees, the NRC and the Agreement States, when compared to the no-action alternative. The NRC requests public comment on the draft regulatory analysis. Comments on the draft regulatory analysis may be submitted to the NRC as indicated under the **ADDRESSES** caption of this document.

B. Identification and Preliminary Analysis of Alternative Approaches

The NRC identified two alternatives for this action: (1) no action (*i.e.*, maintaining the status quo regulatory baseline), and (2) the proposed rulemaking to revise language for the licensing of byproduct material.

The assessment of total costs and benefits discussed previously leads the NRC to the conclusion that the proposed rule, if implemented, would result in quantifiable net cost savings for industry, the NRC and Agreement States. In addition, the NRC concludes that the rule provides nonquantified benefits of regulatory clarity and improved consistency in the regulatory program. The proposed rule is also responsive to stakeholder feedback and aligns with E.O. 14300.

VIII. Backfitting and Issue Finality

The NRC has determined that this proposed rule would not constitute backfitting as that term is defined in the NRC's backfitting provisions in §§ 50.109, 70.76, 72.62, and 76.76, all titled "Backfitting," or affect the issue finality of an approval issued under 10 CFR part 52, "Licenses, Certifications, and Approvals for Nuclear Power Plants." The proposed amendments would not include any provisions that would impose new or modified requirements on existing licensees, applicants, or certificate holders that are within the scope of a backfitting or issue finality provision. The proposed changes would not inextricably affect activities of licensees that are within the

scope of the backfitting or issue finality provisions. Additionally, 10 CFR part 70 licensees within the scope of § 70.76 would not be impacted by this proposed rule. Each of these licensees is already required to submit a site-specific financial assurance plan because their authorized possession limits already exceed the proposed table values. For these reasons, the proposed rule would not meet the definition of "backfitting" under § 50.109, § 70.76, § 72.62, or § 76.76, or affect the issue finality of an approval issued under 10 CFR part 52.

This proposed rule also includes the draft guidance documents described in section XIV, "Availability of Guidance." These documents if finalized, would not constitute backfitting as defined in § 50.109, § 70.76, § 72.62, or § 76.76 or affect the issue finality of any approval issued under 10 CFR part 52 because the guidance would not inextricably affect activities of licensees that are within the scope of the backfitting or issue finality provisions. The guidance would not impose new or modified requirements on existing licensees, applicants, or certificate holders that are within the scope of a backfitting or issue finality provision.

IX. Cumulative Effects of Regulation

The NRC seeks to minimize potential negative consequences resulting from the cumulative effects of regulation (CER). The NRC believes that the de-regulatory impacts of this rulemaking activity are unlikely to cause implementation challenges for stakeholders. In addition, during the pendency of this rulemaking, the NRC is deprioritizing issuance of regulatory actions that might influence the implementation date for the new rule requirements (*e.g.*, orders, generic communications, license amendment requests, and inspection findings of a generic nature).

To fully understand any potential CER implications that could result from this rulemaking, the NRC is asking the following questions. Response to these questions is voluntary and any input will be considered during development of the final rule.

1. The NRC is proposing an effective date that will be 30 days after the date of publication of a final rule. Does this provide sufficient time to implement the proposed requirements? Please provide a rationale for your response.

2. Are there unintended consequences related to this rulemaking and how should they be addressed? Please provide a rationale for your response.

3. Please comment on the NRC's cost and benefit estimates in the regulatory analysis that supports this proposed rule.

X. Plain Writing

The Plain Writing Act of 2010 (Pub. L. 111–274) requires Federal agencies to write documents in a clear, concise, and well-organized manner. The NRC has written this document to be consistent with the Plain Writing Act as well as the Presidential Memorandum, "Plain Language in Government Writing," published June 10, 1998 (63 FR 31883). The NRC requests comment on this document with respect to the clarity and effectiveness of the language used.

XI. Environmental Assessment

A. Introduction

The NRC has prepared this environmental assessment (EA) of the proposed rule amending regulations for byproduct, source, and special nuclear material use to determine the significance of the environmental effects of the proposed agency action in accordance with the National Environmental Policy Act of 1969, as amended (NEPA) and the NRC's NEPA implementing regulations in 10 CFR part 51, "Environmental Protection Regulations for Domestic Licensing and Related Regulatory Functions." As explained below, the NRC has preliminarily determined that the proposed agency action to modernize the NRC regulations for byproduct, source, and special nuclear material use would have no significant effect on the quality of the human environment.

B. Environmental Impacts of the Proposed Action

The proposed action would amend multiple NRC regulations in 10 CFR parts 30, 31, 32, 34, 39, 40, 70, and 150 regarding licensed material use. Conforming changes would also be made to guidance consistent with the changes to regulations. Table B–1 lists the sections of the regulations that would be updated and the affected guidance documents.

TABLE B–1 REGULATION UNDER THE PROPOSED MODERNIZING NRC REGULATIONS FOR BYPRODUCT MATERIAL USE

Rulemaking	Regulations	Guidance
Modernizing NRC Regulations for Byproduct Material Use.	30.4, 30.6, 30.32, 30.34, 30.35, 30.41, Appendix B to Part 30, 31.5, 31.11, 31.13 (new), 31.14 (new), 31.15 (new), 31.16 (new), 31.17 (new), 31.18 (new), 32.12, 32.16, 32.20, 32.25, 32.29, 32.32, 32.72, 32.74, 34.3, 34.13, 34.20, 34.23, 34.27, 34.33, 34.41, 34.43, 34.51, 34.89, 34.101, 39.33, 39.35, 39.77, 40.53, 70.25, 150.14, 150.20	Interim Staff Guidance.

Conforming changes are administrative actions with no physical environmental effect and provide for the appropriate administrative and regulatory framework for byproduct material use under 10 CFR. An example would be adding a reference to a newly created subsection in an existing regulation. Most of the amendments to NRC regulations in the proposed rule occur within the affected regulation. The proposed rule includes conforming changes to NRC regulations in 10 CFR parts 30, 32, and 34.

B.1 Rule Amendments Addressed Under Categorical Exclusion

The NRC has determined that some of the changes to the regulations identified

in this proposed rule meet the criteria for categorical exclusion under § 51.22, “Categorical Exclusions.” Categorical exclusions provide a mechanism to identify Federal actions that normally do not have a significant environmental effect on the human environment and for which neither an EA nor environmental impact statement is normally required. This ensures that resources are not expended on the environmental analysis of proposed actions that do not present the potential for significant environmental effects. Rule amendments with applicable categorical exclusions are presented in Table B–2 below and no further NEPA analysis is required.

These proposed rule amendments belong to categories of actions which the Commission, by rule or regulation, has declared to be a categorical exclusion, after first finding that the category of actions do not individually or cumulatively have a significant effect on the human environment. In reviewing list of regulations in Table B–1, the NRC staff have determined that several of the rule amendments under consideration are actions eligible for categorical exclusion under § 51.22(a)(1) or § 51.22(a)(3). The following rulemaking actions meet the criterion for categorical exclusion under § 51.22(a)(1) or § 51.22(a)(3):

TABLE B–2 RULE AMENDMENTS COVERED BY CATEGORICAL EXCLUSION

Rule amendments	Categorical Exclusion	Reason
30.4; 30.6; 30.32; 30.41 31.5; 31 subparts A, B, D and E. 34.3, 34.13; 34.20; 34.23; 34.27; 34.33; 34.43; 34.89; 34.101; 39.33; 39.35; 39.77.	§ 51.22(a)(1)	Actions that are administrative, procedural, or solely financial in nature, including examples (iv) and (vi). Example (iv): issuance of or changes to administrative procedures or requirements. Example (vi): the proposed amendments are also corrective or of a minor or nonpolicy nature, and do not substantially modify existing regulations.
30.34, 30.35; 32.12; 32.16; 32.20; 32.25; 32.29; 32.32; 40.53; 70.25.	§ 51.22(a)(1)	Actions that are administrative, procedural, or solely financial in nature, including Example (ii): issuance of or changes to recordkeeping or reporting requirements.

These proposed rule amendments clarify NRC regulations and would not change radiation protection and emergency preparedness requirements while continuing to provide reasonable assurance of adequate protection of public health and safety.

B.2 Rule Amendments Requiring Environmental Assessment

The NRC also evaluated rule amendments that have the potential to affect the human environment and determined that the proposed agency action (rulemaking) would not have a significant environmental effect. These rule amendments would clarify NRC regulations, would not change existing

radiation protection and emergency preparedness requirements or overall risk, would continue to provide reasonable assurance of adequate protection of public health and safety, and would result in no new or different environmental effects. The following table presents the basis for why these proposed rule amendments would have no significant environmental effects.

TABLE B–3 BASIS FOR NO SIGNIFICANT ENVIRONMENTAL EFFECTS DETERMINATION FOR RULE AMENDMENTS NOT COVERED BY A CATEGORICAL EXCLUSION

Rule amendments	Basis for no significant environmental effects
Part 30, Appendix B	These proposed amendments would replace the current values in appendix B with applicable values from the table in appendix C, “Quantities of Licensed Material Requiring Labeling,” to 10 CFR part 20, “Standards for Protection against Radiation.” They also add radionuclides not currently listed in appendix B to 10 CFR part 30, including radionuclides associated with industrial technologies and current and emerging medical uses. The proposed changes would also remove all radionuclides with a half-life of 120 days or less from the appendix, since these radionuclides are not considered when developing decommissioning financial assurance, and amends the title of the table to “Quantities of Licensed Material Used to Assess Financial Assurance for Decommissioning,” to more accurately reflect its current use for financial assurance during decommissioning. These changes will either reduce or not affect the amount of DFA required for licensees, depending on the mixture of radionuclides the licensee possesses and would have no different environmental effects. Thus, this regulatory change would have no significant effect on the quality of the human environment.
31.11	Amendments would allow entities to handle vials for in vitro testing with higher activity under a general license. This change would align limits for carbon-14, hydrogen-3, selenium-75, and cobalt-57 with the exempt quantity limits in 10 CFR part 30 and labeling requirements in appendix C to 10 CFR part 20. The limits in § 31.11 have not been updated since their initial issuance in 1968 and the amendments would bring § 31.11 in step with current regulatory limits in 10 CFR parts 20 and 30. Given that the amendments would align with other existing requirements in 10 CFR parts 20 and 30, the amendments would have no significantly different environmental effects than those evaluated for 10 CFR part 20, and, thus, would have no significant effect on the quality of the human environment.
Subpart C—Standard General Licenses: New regulations 31.13 through 31.18.	The amendments to this subpart would establish a new regulatory program and grant standard general license requirements codified in separate regulations, including: • § 31.14: Certain Fixed Gauging; • § 31.15: Portable Gauging; • § 31.16: Certain Medical Uses; • § 31.17: Certain Analytical Equipment Including Electron Capture Detectors, X-Ray Fluorescence Devices, and Ion Generators; and • § 31.18: Certain In Vitro Testing. These amendments propose a new class of general licenses for some low risk standardized operations that are currently specifically licensed, and all of the specifically licensed activities are currently categorically excluded. Because the NRC previously concluded that these activities do not individually or cumulatively have a significant effect on the human environment, no additional analysis is needed. Additionally, these amendments do not authorize any activities not included in 10 CFR part 30.
32.72; 32.74	The proposed amendments to § 32.72, commercial distribution of radioactive drugs for medical use under 10 CFR part 35, would be expanded to include microsources (e.g., microspheres) allowing radiopharmacies to prepare and distribute these materials. Proposed amendments would also provide flexibility for future distribution authorized by the U.S. Food and Drug Administration (FDA) or State regulatory bodies. In addition, proposed amendments to § 32.74 would clarify the distribution of sources and devices containing byproduct material. These two changes would ensure that manufacturers and commercial radiopharmacies can be licensed to distribute microsources in a manner consistent with NRC safety requirements and FDA classifications, while minimizing burden on radiopharmacy and medical use licensees. These changes are administrative and procedural and would not authorize any site-specific action on the part of the NRC or licensee. Licensees and applicants would need to request and receive separate regulatory approval before preparing and distributing microsources. Consequently, this rulemaking provides the basis for any procedure granting the license but does not, by its own operation, provide a license for preparation or distribution activities, but rather applicants must comply with the relevant NRC or Agreement State regulations before they can receive a license. Therefore, this rulemaking will not result in any physical impacts to the environment, and the NRC has determined that the action would result in no significant environmental impacts.
34.41; 34.51	These proposed amendments would combine the requirements in § 34.51 with requirements in § 34.41(a), commonly called “the two-person rule,” “Licenses for Industrial Radiography and Radiation Safety Requirements for Industrial Radiographic Operations” and eliminate § 34.51. The regulation requires a second qualified individual (radiographer or radiographer’s assistant) to be present during industrial radiography operations at temporary jobsites. The revision eliminates ambiguity, allowing for technological innovation in the implementation of the requirement, all while maintaining the integrity of the performance requirements. This action does not alter any the substantive activities under § 34.41(a), and would have no significantly different environmental impacts than those evaluated for § 34.41(a), and, thus, would have no significant effect on the quality of the human environment.

These proposed rule amendments would modernize existing NRC regulations while ensuring the continued safe, effective, and efficient use of byproduct material to provide reasonable assurance of adequate protection of public health and safety. As noted in Table B–3, these amendments either consist of administrative and procedural changes, or would have no significantly different environmental effects than those in the

current regulatory framework. The table also provides rationale supporting the conclusion that these proposed rule amendments would not result in any significant environmental effects.

C. Summary of the Environmental Impacts of the Proposed Action

Implementation of the proposed rule would result in no physical changes to the environment, and, therefore, the NRC has determined that this proposed

agency action would not have a significant effect on the quality of the human environment. Proposed rule amendments include changes that: (1) are administrative in application and matters of procedure, (2) clarify record keeping and reporting requirements, and (3) would provide an equivalent level of safety and security as current NRC regulations.

In addition, the proposed rule would not affect any threatened or endangered

Advanced Nuclear for Clean Energy Act of 2024 (ADVANCE Act), and recently issued E.O. 14300, “Ordering the Reform of the Nuclear Regulatory Commission.”

The proposed rule covers a wide range of topics, including the following that would result in a reduction in recordkeeping and reporting requirements:

- Establishing a low burden class of standard GLs.
- Revising the decommissioning financial assurance tables.
- Addressing anti-competitive barriers.
- Reducing reporting of distribution to exempt persons.
- Removing or modifying redundant and unnecessary regulations.
- Reducing the burden for filing amended NRC Form 241’s for work activities conducted in offshore waters.

This information collection includes burden reduction associated with revised information collection in 10 CFR parts 30, 31, 32, 34, 39, 40, and Forms 241, 483, and 313. It also includes burden associated with new information collection in proposed 10 CFR part 31 and proposed NRC Form 1003 that would create a low burden licensing option for licensees currently licensed under 10 CFR part 30 who use NRC Form 313.

The NRC is seeking public comment on the potential impact of the information collections contained in this proposed rule and on the following issues:

1. Is the proposed information collection necessary for the proper performance of the functions of the NRC, including whether the information will have practical utility? Please explain your response.
2. Is the estimate of the burden of the proposed information collection accurate? Please explain your response.
3. Is there a way to enhance the quality, utility, and clarity of the information to be collected? Please explain your response.
4. How can the burden of the proposed information collection on respondents be minimized, including the use of automated collection techniques or other forms of information technology?

A copy of the Office of Management and Budget (OMB) clearance package and proposed rule are available in the “Availability of Documents” section of this document or may be viewed free of charge by contacting the NRC’s Public Document Room reference staff at 1–800–397–4209, at 301–415–4737, or by email to PDR.Resource@nrc.gov. You may obtain information and comment

on submissions related to the OMB clearance package by searching on <https://www.regulations.gov> under Docket ID NRC–2025–1205.

You may submit comments on any aspect of these proposed information collection(s), including suggestions for reducing the burden and on the above issues, by the following method:

Federal rulemaking website: Go to <https://www.regulations.gov> and search for Docket ID NRC–2025–1205.

Submit comments by June 17, 2026. Comments received after this date will be considered if it is practical to do so, but the NRC staff is able to ensure consideration only for comments received on or before this date.

Public Protection Notification

The NRC may not conduct or sponsor, and a person is not required to respond to, a collection of information unless the document requesting or requiring the collection displays a currently valid OMB control number.

XIII. Coordination With NRC Agreement States

On September 3, 2025, the NRC held a Government-to-Government meeting with the OAS to discuss this rulemaking. The rulemaking working group that prepared this proposed rule also included representatives from OAS. Comments from the Agreement States were taken into consideration during the development of this proposed rule.

XIV. Compatibility of Agreement State Regulations

On the basis of the “Agreement State Program Policy Statement” approved by the Commission on October 2, 2017, and published in the **Federal Register** (82 FR 48535; October 18, 2017), NRC program elements can be placed into six categories (A, B, C, D, NRC, or health and safety (H&S)) to form the basis for evaluating and classifying the program elements. Under the Policy Statement, a program element means any component or function of a radiation control regulatory program, including regulations and other legally binding requirements imposed on regulated persons, which contributes to implementation of that program.

Compatibility Category A are those program elements that include basic radiation protection standards and scientific terms and definitions that are necessary to understand radiation protection concepts. Compatibility Category A program elements adopted by an Agreement State should be essentially identical to those of the NRC to provide uniformity in the regulation

of agreement material on a nationwide basis.

Compatibility Category B pertains to a limited number of program elements that cross jurisdictional boundaries and should be addressed to ensure uniformity of regulation on a nationwide basis. For Compatibility Category B, the Agreement State program element shall be essentially identical to that of NRC.

Compatibility Category C are those program elements that are important for an Agreement State to have in order to avoid conflict, duplication, gaps, or other conditions that would jeopardize an orderly pattern in the regulation of agreement material on a national basis. An Agreement State program shall embody the essential objectives of the Category C program elements. Under Category C, Agreement State program elements may be more restrictive than NRC program elements; however, they should not be so restrictive as to prohibit a practice authorized by the AEA, as amended, and in the national interest without an adequate public health and safety or environmental basis related to radiation protection.

Compatibility Category D are those program elements that do not meet any of the criteria of Category A, B, or C, above, and are not required to be adopted by Agreement States for purposes of compatibility. An Agreement State has the flexibility to adopt and implement program elements within the State’s jurisdiction that are not addressed by the NRC or that are not required for compatibility (*i.e.*, Compatibility Category D). However, such program elements of an Agreement State relating to agreement material shall (1) not create conflicts, duplications, gaps, or other conditions that would jeopardize an orderly pattern in the regulation of agreement material on a nationwide basis; (2) not preclude a practice authorized by the AEA and in the national interest; and (3) not preclude the ability of the NRC to evaluate the effectiveness of Agreement State programs for agreement material with respect to protection of public health and safety.

Compatibility Category NRC are those program elements that address areas of regulation that cannot be relinquished to the Agreement States under the AEA, or provisions of 10 CFR. The NRC maintains regulatory authority over these program elements and the Agreement States must not adopt these NRC program elements. However, an Agreement State may inform its licensees of these NRC requirements through a mechanism under the State’s administrative procedure laws, as long

as the State adopts these provisions solely for the purposes of notification, and does not exercise any regulatory authority as a result.

Category H&S program elements embody the basic health and safety aspects of the NRC's program elements. Although H&S program elements are not required for purposes of compatibility, they do have particular health and safety significance. The Agreement State must adopt the essential objectives of such program elements to maintain an adequate program.

This proposed rule is a matter of compatibility between the NRC and the Agreement States, thereby providing consistency among Agreement State and NRC requirements. In this proposed rule, the NRC is not proposing to change the compatibility categories for requirements that are being amended. Therefore, for any requirements that are currently designated as Compatibility A or B, States would have to amend their rules to be essentially identical to the amended rule language.

However, for requirements that are designated as Compatibility C or Category H&S, States may not necessarily have to revise their rules so long as their current rule meets the essential objective for the amended requirement. For instance, the essential objective for § 150.20, is for Agreement States to provide reciprocal recognition of a specific license issued by the NRC or another Agreement State. However, proposed changes to § 150.20 include permitting SGLs to be used for the basis of reciprocal recognition. The NRC is proposing that the Compatibility Category of § 150.20 remain Category C, but to continue to meet the essential objective for the amended requirement, all Agreement States would be required to provide reciprocal recognition of a specific license or SGL issued by the NRC or another Agreement State. The State would have flexibility in the administration and requirements for reciprocity and would not need to revise

their current program to remain compatible with the proposed revision to § 150.20.

The NRC is also proposing to remove requirements in §§ 34.20(d) and (e), 34.41(d), 34.43(a)(2), 34.43(h) and (i), 34.51, 34.101(c), and 39.77(c)(1). Except for 34.20(e), these requirements pertain to grandfathering and duplicative requirements and, as such, Agreement States are not required to also remove those regulations; Agreement States keeping their equivalent to the listed regulations (except for § 34.20(e)) would not lead to a disorderly pattern of regulation on a nationwide basis. However, Agreement States should remove their equivalent to § 34.20(e) to remove superseded standards and requirements. Failure to remove this would result in gaps and conflicts between programs in the National Materials Program that would negatively impact the uniformity of regulation on a nationwide basis because only radiographic equipment that meets the appropriate standards and requirements can be used by licensees.

In developing the new SGL pathway, the NRC recognizes that Agreement States may not want to adopt the new subpart C of 10 CFR part 31, and it would therefore not be required for purposes of compatibility. For States that choose to adopt this pathway, some of the requirements would be required for either compatibility or H&S purposes. To ensure that transferors of devices and byproduct material are permitted to transfer materials to an SGL, the requirement in § 30.41(d)(1) is being revised.

The NRC is proposing that the Compatibility Category of § 30.41 remain Category C, but the NRC is proposing to clarify that to meet the essential objective for the amended requirement, all Agreement States must ensure that a validated SGL is an acceptable method of verification for § 30.41(c). Since a validated SGL is a verification method for transferring

byproduct material under § 30.41(d), the requirement in § 31.13(a)(2), regarding issuing the validated SGL, is proposed to be designated as Compatibility Category C for Agreement States that adopt the SGL pathway. To meet the essential objective for § 31.13(a)(2), an Agreement State would need to issue a document validating an SGL. The SGL pathway codifies the minimum legally binding requirements needed to ensure health and safety that are required to obtain a specific license into the regulations, and it is therefore necessary that the State meet the essential objective for those requirements that have been designated as Compatibility Category C.

Provisions specifying the specific sealed sources and devices that are permitted under the SGL pathway are based on the SSDR use codes and have a proposed designation of Compatibility Category B since there is need for consistency across jurisdictions when using SSDRs for licensing purposes. The SGL for Certain Medical Uses includes an exhaustive list of the radionuclides authorized pursuant to 31.16(a)(2). Because 31.16(a)(2) is proposed to be designated Compatibility Category C, Agreement States would have the flexibility to permit other radionuclides than those authorized under the SGL to be used. However, authorizing additional radionuclides such as PET or generators other than Molybdenum-99/technetium-99m generators would not meet the essential objective for this requirement as these radionuclides or uses require additional licensing requirements to ensure an adequate level of safety. Administrative requirements, such as recordkeeping, are not required for purposes of compatibility and would be Compatibility Category D.

The proposed compatibility (A, B, C, D, and NRC) and adequacy (H&S) categories are designated in the following table.

ADEQUACY AND COMPATIBILITY TABLE

Section	Change	Subject	Compatibility	
			Existing	New
Part 30				
30.4	Amend	Definitions—Consortium	C	C.
30.4	Remove	Definitions—Physician	D.	
30.4	Amend	Definitions—Principal activities	D	D.
30.6(b)(1)	Amend	Communications	D	D.
30.32(j)(2)	Amend	Application for specific licenses	B	B.

ADEQUACY AND COMPATIBILITY TABLE—Continued

Section	Change	Subject	Compatibility	
			Existing	New
30.34(h)(1)	Amend	Terms and conditions of licenses	H&S	H&S. Note—the reference to 10 CFR 31 subpart C should only be included by States that adopt Standard General Licenses.
30.35(g)	Amend	Financial assurance and recordkeeping for de-commissioning.	H&S	H&S. Note—the reference to 10 CFR 31 subpart C should only be included by States that adopt Standard General Licenses.
30.41(d)(1)	Amend	Transfer of byproduct material	C	C.
Appendix B	Amend	Appendix B—Quantities of Licensed Material Used to Assess Financial Assurance for De-commissioning.	B	B.

Part 31

31.5(c)(14)	Amend	Certain detecting, measuring, gauging, or controlling devices and certain devices for producing light or an ionized atmosphere.	C	C.
31.5(c)(15)	Amend	Certain detecting, measuring, gauging, or controlling devices and certain devices for producing light or an ionized atmosphere.	C	C.
31.11(a)(3), (4), (6), & (8).	Amend	General license for use of byproduct material for certain in vitro clinical or laboratory testing.	D	D.
31.13(a) & (b), except (a)(2).	New	Standard General License Requirements		D.
31.13(a)(2)	New	Requirements		C—for States that authorize Standard General Licenses. D—for States who don't.
31.13(c) & (d)	New	Standard General License Requirements		C—for States that authorize Standard General Licenses. D—for States who don't.
31.13(e)	New	Standard General License Requirements		NRC.
31.13(f)–(h)	New	Standard General License Requirements		H&S—for States that authorize Standard General Licenses. D—for States who don't.
31.14 except (a)(2), (c)(2)(ii), (c)(3)(ii), (c)(6)(i), (c)(6)(iii), (c)(7)(ii), (c)(8)(ii), (c)(9)(i) & (c)(10)(ii).	New	Standard General License for Certain Fixed Gauging.		C—for States that authorize Standard General Licenses. D—for States who don't. Note—States should not incorporate references to Federal Government agencies.
31.14(a)(2)	New	Standard General License for Certain Fixed Gauging.		B—for States that authorize Standard General Licenses. D—for States who don't.
31.14(c)(2)(ii), (c)(3)(ii), (c)(6)(iii), (c)(7)(ii), (c)(8)(ii), (c)(9)(i) & (c)(10)(ii).	New	Standard General License for Certain Fixed Gauging.		D.
31.14(c)(6)(i)	New	Standard General License for Certain Fixed Gauging.		H&S
31.15 except (a)(2), (a)(3)(iii), (c)(2)(ii), (c)(3)(ii), (c)(5)(iii), (c)(7)(ii), (c)(8)(i).	New	Standard General License for Portable Gauging		C—for States that authorize Standard General Licenses. D—for States who don't. Note—States should not incorporate references to Federal Government. Reference to NRC Form 1003 is Compatibility D.
31.15(a)(2)	New	Standard General License for Portable Gauging		B—for States that authorize Standard General Licenses. D—for States who don't.
31.15(a)(3)(iii), (c)(2)(ii), (c)(3)(ii), (c)(5)(iii), (c)(7)(ii), (c)(8)(i).	New	Standard General License for Portable Gauging		D.

ADEQUACY AND COMPATIBILITY TABLE—Continued

Section	Change	Subject	Compatibility	
			Existing	New
31.16 except (c)(1)(iii), (c)(2)(iii), (c)(4)(iii), (c)(5)(iii), (c)(6)(iv).	New	Standard General License for Certain Medical Uses.		C—for States that authorize Standard General Licenses. D—for States who don't. Note—States should not incorporate references to Federal Government.
31.16(c)(1)(iii), (c)(2)(iii), (c)(4)(iii), (c)(5)(iii), (c)(6)(iv).	New	Standard General License for Certain Medical Uses.		D.
31.17 except (a)(2), (a)(3)(iii), (c)(2)(ii), (c)(4)(ii), (c)(5)(i) & (c)(6)(ii).	New	Standard General License for Certain Analytical Equipment Including Electron Capture Detectors, X-Ray Fluorescence Devices, and Ion Generators.		C—for States that authorize Standard General Licenses. D—for States who don't. Note—States should not incorporate references to Federal Government. Reference to NRC Form 1003 is Compatibility D.
31.17(a)(2)	New	Standard General License for Certain Analytical Equipment Including Electron Capture Detectors, X-Ray Fluorescence Devices, and Ion Generators.		B—for States that authorize Standard General Licenses. D—for States who don't.
31.17(a)(3)(iii), (c)(2)(ii), (c)(4)(ii), (c)(5)(i) & (c)(6)(ii).	New	Standard General License for Certain Analytical Equipment Including Electron Capture Detectors, X-Ray Fluorescence Devices, and Ion Generators.		D.
31.18 except (c)(1)(ii), (c)(2)(ii), (c)(4)(iii), (c)(5)(iii), (c)(6)(ii)—(iii).	New	Standard General License for Certain In Vitro Testing.		C—for States that authorize Standard General Licenses. D—for States who don't.
31.18 (c)(1)(ii), (c)(2)(ii), (c)(4)(iii), (c)(5)(iii), (c)(6)(ii)—(iii).	New	Standard General License for Certain In Vitro Testing.		D.

Part 32

32.12	Amend	Same: Records and material transfer reports	NRC	NRC.
32.16	Amend	Certain items containing byproduct material: Records and reports of transfer.	NRC	NRC.
32.20	Amend	Same: Records and material transfer reports	NRC	NRC.
32.25	Amend	Conditions of licenses issued under§ 32.22: Quality control, labeling, and reports of transfer.	NRC	NRC.
32.29	Amend	Conditions of licenses issued under§ 32.26: Quality control, labeling, and reports of transfer.	NRC	NRC.
32.32	Amend	Conditions of licenses issued under§ 32.30: Quality control, labeling, and reports of transfer.	NRC	NRC.
32.72	Amend	Manufacture, preparation, or transfer for commercial distribution of radioactive drugs containing byproduct material for medical use under Part 35.	B	B.
32.74	Amend	Manufacture and distribution of sources or devices containing byproduct material for medical use.	B	B.

Part 34

34.3	New	Definitions—Sealed Source and Device Registry.		[D].
34.13	Amend	Specific license for industrial radiography	C	C.
34.20(a)(1) & (c)	Amend	Performance requirements for industrial radiography equipment.	B	B.
34.20(a)(2)	Amend	Performance requirements for industrial radiography equipment.	D	D.
34.20(d) & (e)	Remove	Performance requirements for industrial radiography equipment.	B.	
34.23	Amend	Locking of radiographic exposure devices, storage containers and source changers.	B	B.
34.27(c)(1) & (e)	Amend	Leak testing and replacement of sealed sources	C	C.
34.33	Amend	Permanent radiographic installations	H&S	H&S.

ADEQUACY AND COMPATIBILITY TABLE—Continued

Section	Change	Subject	Compatibility	
			Existing	New
34.41(a)	Amend	Conducting industrial radiographic operations ...	C	C.
34.41(d)	Remove	Conducting industrial radiographic operations ...	D.	
34.43(a)(1)	Amend	Training	B	B.
34.43(a)(2)	Remove	Training	D.	
34.43(h) & (i)	Remove	Training	B.	
34.51	Remove	Surveillance	C	Note—requirement moved to 34.41(a).
34.89(b)	Amend	Location of documents and records	C	C.
34.101(c)	Remove	Notifications	C.	
Part 39				
39.33(c)	Amend	Radiation detection instruments	C	C.
39.35(c)	Amend	Leak testing of sealed sources	C	C.
39.77(c)(1)	Remove	Notification of incidents: abandonment procedures for irretrievable sources.	C.	
Part 40				
40.53(c)	Amend	Conditions for licenses issued for initial transfer of certain items containing source material: Quality control, labeling, and records.	NRC	NRC.
Part 70				
70.25(a)(2)	Amend	Financial Assurance and Recordkeeping for Decommissioning.	NRC	NRC.
70.25(b)	Amend	Financial Assurance and Recordkeeping for Decommissioning.	H&S	H&S.
Part 150				
150.14	Remove	Commission regulatory authority for physical protection..	NRC.	
150.20	Amend	Recognition of Agreement State licenses.	C	C. Note—States should not incorporate references to offshore waters.

Please Note: The bracket “[]” around a compatibility category designation means that the section may have been adopted elsewhere in a State’s rules and it is not necessary to adopt it again.

XV. Coordination With the Advisory Committee on the Medical Uses of Isotopes

The ACMUI established a subcommittee to review and comment on the draft proposed rule. The subcommittee will make its recommendations to the full committee on this proposed rule at a publicly held teleconference during the public comment period.

XVI. Voluntary Consensus Standards

The National Technology Transfer and Advancement Act of 1995, Public Law 104–113, requires that Federal agencies use technical standards that are developed or adopted by voluntary consensus standards bodies unless the use of such a standard is inconsistent with applicable law or otherwise

impractical. The NRC’s goals in amending these regulations are to modernize the safe, effective, and efficient use of byproduct material. This action would reduce licensing burden and the need for exemptions from existing regulations and address other deregulatory issues deemed relevant by the NRC. This action does not constitute the establishment of a standard that contains generally applicable requirements.

XVII. Availability of Guidance

The NRC expects to update NUREG–1556 series “Consolidated Guidance About Materials Licenses”, NUREG 1757, Volume 1, “Consolidated Decommissioning Guidance,” various Inspection Procedures, and certain Inspection Manual Chapters to make changes to conform with this rulemaking effort. To support an accelerated development schedule for this proposed rule, the updates will be made in a future revision of the guidance, rather than concurrently with

this rulemaking. However, for the new SGL program that is proposed in 10 CFR part 31 subpart C, the NRC has drafted interim guidance to aid licensees and the NRC in implementation of the new licensing option. The NRC has also drafted interim staff guidance to address the revised reciprocity requirements in § 150.20, using a Frequently Asked Questions format. The interim guidance will be added to the NRC’s public website. You may submit comments on the draft interim guidance by the methods outlined in the **ADDRESSES** section of this document

XVIII. Executive Orders

The following are Executive orders that are related to this proposed rule:

A. Executive Order 12866: Regulatory Planning and Review (as Amended by Executive Order 14215, Ensuring Accountability for All Agencies)

The Office of Information and Regulatory Affairs (OIRA) has determined that this proposed rule is a

significant regulatory action. Accordingly, the NRC submitted this proposed rule to OIRA for review. The NRC is required to conduct an economic analysis in accordance with section 6(a)(3)(B) of E.O. 12866. More can be found in Section VII, of this document, “Regulatory Analysis.”

B. Executive Order 14154: Unleashing American Energy

NRC has examined this proposed rule and has determined that it is consistent with the policies and directives outlined in E.O. 14154.

C. Executive Order 14192: Unleashing Prosperity Through Deregulation

This action is tentatively determined to be a deregulatory action as defined by E.O. 14192. Details on the estimated costs of this proposed rule can be found in Section VII, of this document, “Regulatory Analysis.”

D. Executive Order 14267: Reducing Anti-Competitive Regulatory Barriers

E.O. 14267 requires the NRC to identify anti-competitive regulations for rescission or modification. It also serves

an important regulatory goal. The NRC identified § 30.4 because this regulation creates a barrier to market participation by creating artificial barriers to facility location related to consortiums and PET radionuclide production. In addition, NRC identified § 34.20(a)(1) because this regulation creates a barrier to market participation by limiting the universe of acceptable radiography designs. The NRC identified 10 CFR part 31 because this regulation creates a barrier to market participation by increasing the compliance requirements on all market participants. The proposed changes to 10 CFR part 31 support the objectives of E.O. 14267 by adding standard general licensing pathway and thereby expanding the scope of general licenses for byproduct material to include additional devices and more activities.

E. Executive Order 14270: Zero-Based Regulatory Budgeting To Unleash American Energy

E.O. 14270, “Zero-Based Regulatory Budgeting to Unleash American Energy,” requires the NRC to insert a conditional sunset date into all new or

amended NRC regulations provided the regulations are (1) promulgated under the Atomic Energy Act of 1954, as amended (AEA), the Energy Reorganization Act of 1974, as amended (ERA), and the Nuclear Waste Policy Act of 1982, as amended (NWPA); (2) not statutorily required; and (3) not part of the NRC’s permitting regime. The NRC determined that the regulatory changes proposed in this rule are required because they would be necessary for providing reasonable assurance of adequate protection of public health and safety and provide for the common defense and security, and would be part of the NRC’s permitting regime authorized by the AEA. Therefore, the NRC views this rulemaking to be outside the scope of E.O. 14270 and did not insert conditional sunset dates for the regulatory changes in this proposed rule.

XIX. Availability of Documents

The documents identified in the following table are available to interested persons through one or more of the following methods, as indicated.

Document	ADAMS accession No./web link/ Federal Register citation
Interim Staff Guidance Reciprocity	ML25316A025.
Office Of Nuclear Material Safety and Safeguards Interim Staff Guidance NMSS-ISG-04 Guidance for the Implementation of 10CFRPart31 Subpart C Standard General Licenses.	ML25316A026.
Final rule, “Requirements for Expanded Definition of Byproduct Material,” dated October 1, 2007	72 FR 55864.
Final rule, “Exemptions From Licensing, General Licenses, and Distribution of Byproduct Material: Licensing and Reporting Requirements,” dated October 16, 2007.	72 FR 58473.
Final rule, “Standards for Protection Against Radiation; Removal of Expired Material,” dated December 22, 1993 ..	58 FR 67657.
Decommissioning Financial Assurance Requirements for Sealed and Unsealed Radioactive Materials—Regulatory Basis.	ML21235A480.
PRM-30-66 Petition for Rulemaking, Revision of 10 CFR 30 Appendix B, April 14, 2017	ML17173A063.
SECY-23-0062, Enclosure 1—Proposed Rule Federal Register Notice for Decommissioning Financial Assurance for Sealed and Unsealed Radioactive Materials, July 24, 2023.	ML23010A171.
Final rule, “Distribution of Source Material to Exempt Persons and to General Licensees and Revision of General License Exemptions,” dated May 29, 2013.	78 FR 32310.
Final rule, “Safety Requirements for Industrial Radiographic Equipment,” dated January 10, 1990	55 FR 843.
Final rule, “Licenses for Industrial Radiography and Radiation Safety Requirements for Industrial Radiographic Operations,” dated May 28, 1997.	62 FR 28948.
Notification of interpretation, “Industrial Radiographic Operations and Training,” dated June 1, 2021	86 FR 29173.
Final rule, “Licenses and Radiation Safety Requirements for Well Logging,” dated April 17, 2000	65 FR 20345.
Final rule, “Consumer Products Containing Small Quantities of Radioactive Material; Modified Reporting and Recordkeeping Requirements,” dated March 24, 1983..	48 FR 12331.
PRM-30-66, “Request of the Organization of Agreement States for the NRC to Amend Appendix B, ‘Quantities of Licensed Material Requiring Labeling,’” dated April 14, 2017.	ML17173A063.
PRM-34-6, “Petition for Rulemaking on behalf of the Organization of Agreement States (AOS), Barbara Hamrick to amend 10 CFR part 34,” dated November 3, 2005.	ML053190112.
NUREG-1556, “Consolidated Guidance About Materials Licenses”	https://www.nrc.gov/reading-rm/doc-collections/nuregs/staff/sr1556/index .
NUREG-1717, “Systematic Radiological Assessment of Exemptions for Source and Byproduct Materials,” June 2001.	ML011980433 (Package).
NUREG-1757, “Consolidated Decommissioning Guidance,” Volume 1, Revision 2, September 2006	ML063000243.
Regulatory Analysis for the Proposed Rule—Modernizing NRC Regulations for Byproduct Material Use	ML26125A393.
Redline Strikeout Document—Proposed Rule—Modernizing NRC Regulations for Byproduct Material Use	ML25323A157 (Package).
Revision to policy statement, “Agreement State Program Policy Statement; Correction,” dated October 18, 2017 ..	82 FR 48535.
Regulatory basis; request for comment, “Decommissioning Financial Assurance for Sealed and Unsealed Radioactive Materials,” dated April 28, 2022.	87 FR 25157.
Executive Order 12866, “Regulatory Planning and Review,” October 4, 1993	58 FR 51735.
Executive Order 14154, “Unleashing American Energy,” January 29, 2025	90 FR 8353.

Document	ADAMS accession No./web link/ Federal Register citation
Executive Order 14192, “Unleashing Prosperity Through Deregulation,” February 6, 2025	90 FR 9065.
Executive Order 14270, “Zero-Based Regulatory Budgeting To Unleash American Energy,” April 15, 2025	90 FR 15643.
Burden Tables Modernizing Regulations for Byproduct Material use	ML25323A164.
Supporting Statement Modernizing Regulations for Byproduct Material Use	ML25322A158.
Presidential Memorandum, “Plain Language in Government Writing,” dated June 10, 1998	63 FR 31885.

The NRC may post materials related to this document, including public comments, on the Federal rulemaking website at <https://www.regulations.gov> under Docket ID NRC–2025–1205. In addition, the Federal rulemaking website allows members of the public to receive alerts when changes or additions occur in a docket folder. To subscribe: (1) navigate to the docket folder (NRC–2025–1205); (2) click the “Subscribe” link; and (3) enter an email address and click on the “Subscribe” link.

List of Subjects

10 CFR Part 30

Byproduct material, Criminal penalties, Government contracts, Intergovernmental relations, Isotopes, Nuclear energy, Nuclear materials, Penalties, Radiation protection, Reporting and recordkeeping requirements, Whistleblowing.

10 CFR Part 31

Byproduct material, Criminal penalties, Labeling, Nuclear energy, Nuclear materials, Packaging and containers, Penalties, Radiation protection, Reporting and recordkeeping requirements, Scientific equipment.

10 CFR Part 32

Byproduct material, Criminal penalties, Labeling, Nuclear energy, Nuclear materials, Radiation protection, Reporting and recordkeeping requirements.

10 CFR Part 34

Criminal penalties, Manpower training programs, Occupational safety and health, Packaging and containers, Penalties, Radiation protection, Radiography, Reporting and recordkeeping requirements, Scientific equipment, Security measures, X-rays.

10 CFR Part 39

Byproduct material, Criminal penalties, Labeling, Nuclear energy, Nuclear material, Occupational safety and health, Oil and gas exploration—well logging, Penalties, Radiation protection, Reporting and recordkeeping requirements, Scientific equipment, Security measures, Source material, Special nuclear material.

10 CFR Part 40

Criminal penalties, Exports, Government contracts, Hazardous materials transportation, Hazardous waste, Nuclear energy, Nuclear materials, Penalties, Reporting and recordkeeping requirements, Source material, Uranium, Whistleblowing.

10 CFR Part 70

Classified information, Criminal penalties, Emergency medical services, Hazardous materials transportation, Material control and accounting, Nuclear energy, Nuclear materials, Packaging and containers, Penalties, Radiation protection, Reporting and recordkeeping requirements, Scientific equipment, Security measures, Special nuclear material, Whistleblowing.

10 CFR Part 150

Criminal penalties, Hazardous materials transportation, Intergovernmental relations, Nuclear energy, Nuclear materials, Penalties, Reporting and recordkeeping requirements, Security measures, Source material, Special nuclear material.

For the reasons set out in the preamble and under the authority of the Atomic Energy Act of 1954, as amended; the Energy Reorganization Act of 1974, as amended; and 5 U.S.C. 552 and 553, the NRC is proposing to amend 10 CFR parts 30, 31, 32, 34, 39, 40, 70 and 150:

PART 30—RULES OF GENERAL APPLICABILITY TO DOMESTIC LICENSING OF BYPRODUCT MATERIAL

■ 1. The authority citation for part 30 continues to read as follows:

Authority: Atomic Energy Act secs. 81, 82, 161, 181, 182, 183, 186, 223, 234 (42 U.S.C. 2111, 2112, 2201, 2231, 2232, 2233, 2236, 2273, 2282); Energy Reorganization Act secs. 201, 202, 206 (42 U.S.C. 5841, 5842, 5846); Government Paperwork Elimination Act sec. 1704 (44 U.S.C. 3504 note); Energy Policy Act of 2005, Pub. L. 109–58, 119 Stat. 549 (2005).

Section 30.7 also issued under Energy Reorganization Act sec. 211, Pub. L. 95–601, sec. 10, as amended by Pub. L. 102–486, sec. 2902 (42 U.S.C. 5851). Section 30.34(b) also issued under Atomic Energy Act sec. 184 (42

U.S.C. 2234). Section 30.61 also issued under Atomic Energy Act sec. 187 (42 U.S.C. 2237).

■ 2. In § 30.4, remove the definition of “Physician” and revise the definitions of “Consortium” and “Principal activities” to read as follows:

§ 30.4 Definitions.

* * * * *

Consortium means an association of medical use licensees and a PET radionuclide production facility that jointly own or share in the operation and maintenance cost of the PET radionuclide production facility that produces PET radionuclides for use in producing radioactive drugs within the consortium for noncommercial distributions among its associated members for medical use. The PET radionuclide production facility within the consortium must be located at an educational institution or a Federal facility or a medical facility.

* * * * *

Principal activities, as used in this part and part 31 of this chapter, means activities authorized by the license which are essential to achieving the purpose(s) for which the license was issued or amended. Storage during which no licensed material is accessed for use or disposal, and activities incidental to decontamination or decommissioning are not principal activities.

* * * * *

■ 3. In § 30.6, revise paragraph (b)(1) to read as follows:

§ 30.6 Communications.

* * * * *

(b) * * *

(1) The delegated licensing program includes authority to issue, renew, amend, cancel, modify, suspend, or revoke licenses for nuclear materials issued, and validate standard general license registrations, pursuant to 10 CFR parts 30 through 36, 39, 40, and 70 to all persons for academic, medical, and industrial uses, with the following exceptions:

* * * * *

■ 4. In § 30.32, revise paragraph (j)(2) to read as follows:

§ 30.32 Application for specific licenses.

* * * * *

(j) * * *

(2) Evidence that the applicant is qualified to produce radioactive drugs for medical use by meeting one of the criteria in § 32.72(a) of this chapter.

* * * * *

■ 5. In § 30.34, revise paragraph (h)(1) to read as follows:

§ 30.34 Terms and conditions of licenses.

* * * * *

(h) * * *

(1) Each general licensee that is required to register by § 31.5(c)(13) or part 31 subpart C in accordance with § 31.13 of this chapter, and each specific licensee shall notify the appropriate NRC Regional Administrator, in writing, immediately following the filing of a voluntary or involuntary petition for bankruptcy under any chapter of title 11 (Bankruptcy) of the United States Code by or against:

* * * * *

■ 6. In § 30.35, revise paragraph (g) introductory text to read as follows:

§ 30.35 Financial assurance and recordkeeping for decommissioning.

* * * * *

(g) Each person licensed under this part, part 31 subpart C of this chapter, or parts 32 through 36 and 39 of this chapter shall keep records of information important to the decommissioning of a facility in an identified location until the site is released for unrestricted use. Before licensed activities are transferred or assigned in accordance with § 30.34(b), licensees shall transfer all records described in this paragraph to the new licensee. In this case, the new licensee will be responsible for maintaining these records until the license is terminated. If records important to the decommissioning of a facility are kept for other purposes, reference to these records and their locations may be used. Information the Commission considers important to decommissioning consists of—

* * * * *

■ 7. In § 30.41, revise paragraph (d)(1) to read as follows:

§ 30.41 Transfer of byproduct material.

* * * * *

(d) * * *

(1) The transferor may have in his possession, and read, a current copy of the transferee's specific license, validated standard general license, or registration certificate;

* * * * *

■ 8. Revise appendix B to 10 CFR part 30 to read as follows:

Appendix B—Quantities of Licensed Material Used To Assess Financial Assurance for Decommissioning

Material	Micro-curies	Material	Micro-curies
Aluminum-26	10	Polonium-210	0.1
Americium-241	0.01	Potassium-40	100
Antimony-125	100	Promethium-143	100
Argon-39	1,000	Promethium-144	10
Barium-133	100	Promethium-145	10
Berkelium-249	0.1	Promethium-146	1
Beryllium-10	1	Promethium-147	10
Bismuth-207	10	Radium-226	0.1
Bismuth-210m	0.1	Radium-228	0.1
Cadmium-109	10	Rhenium-184m	10
Cadmium-113m	0.1	Rhenium-186m	10
Cadmium-113	100	Rhenium-187	1,000
Calcium-41	100	Rhodium-101	10
Calcium-45	100	Rhodium-102m	10
Californium-248	0.01	Rhodium-102	10
Carbon-14	100	Rubidium-87	100
Cerium-139	100	Ruthenium-106	1
Cerium-144	1	Samarium-145	100
Cesium-134	10	Samarium-146	1
Cesium-135	100	Samarium-147	100
Cesium-137	10	Samarium-151	10
Chlorine-36	10	Selenium-79	100
Cobalt-57	100	Silicon-32	1
Cobalt-60	1	Silver-108m	1
Curium-242	0.01	Silver-100m	10
Dysprosium-159	100	Sodium-22	10
Europium-150	1	Strontium-90	0.1
Europium-152	1	Tantalum-179	100
Europium-154	1	Technetium-97	1,000
Europium-155	10	Technetium-98	10
Gadolinium-151	10	Technetium-99	100
Gadolinium-152	100	Tellurium-121m	10
Gadolinium-153	10	Tellurium-123	100
Germanium-68	10	Terbium-157	10
Gold-195	10	Terbium-158	1
Hafnium-172	1	Thallium-204	100
Hafnium-178m	0.1	Thorium-232	100
Hafnium-182	0.1	Thorium-natural ¹	100
Holmium-166m	1	Thulium-170	10
Hydrogen-3	1,000	Thulium-171	10
Indium-115	100	Tin-119m	100
Iodine-129	1	Tin-121m	100
Iridium-194m	10	Tin-123	10
Iron-55	100	Tin-126	10
Iron-60	1	Titanium-44	1
Krypton-81	1,000	Tungsten-181	1,000
Krypton-85	1,000	Uranium-233	0.01
Lanthanum-137	10	Uranium-234	0.01
Lanthanum-138	100	Uranium-235	0.01
Lead-202	10	Uranium-238	100
Lead-205	100	Uranium-natural ²	100
Lutetium-173	10	Vanadium-49	1,000
Lutetium-174m	10	Zinc-65	10
Lutetium-174	10	Zirconium-93	10
Lutetium-176	100	Any alpha-emitting radionuclide not listed above or mixtures of alpha emitters of unknown composition.	0.01
Lutetium-177m	10	Any radionuclide other than alpha emitting radionuclides not listed above, or mixtures of beta emitters of unknown composition.	0.1
Manganese-53	1,000		
Manganese-54	100		
Mercury-194	1		
Molybdenum-93	10		
Neptunium-235	100		
Nickel-59	100		
Nickel-63	100		
Niobium-93m	10		
Niobium-94	1		
Osmium-194	1		
Palladium-107	10		
Platinum-193	1,000		
Plutonium-239	0.01		

¹Based on alpha disintegration rate of Th-232, Th-230, and their daughter products.

²Based on alpha disintegration rate of U-238, U-234, and U-235.

* * * * *

PART 31—GENERAL DOMESTIC LICENSES FOR BYPRODUCT MATERIAL

■ 9. The authority citation for part 31 continues to read as follows:

Authority: Atomic Energy Act secs. 81, 161, 183, 223, 234 (42 U.S.C. 2111, 2201, 2233, 2273, 2282); Energy Reorganization Act secs. 201, 202 (42 U.S.C. 5841, 5842); Government Paperwork Elimination Act sec. 1704 (44 U.S.C. 3504 note); Energy Policy Act of 2005, sec. 651(e), Pub. L. 109–58, 119 Stat. 806–810 (42 U.S.C. 2014, 2021, 2021b, 2111).

■ 10. Add subpart A, before § 31.1 to read as follows:

PART 31—GENERAL DOMESTIC LICENSES FOR BYPRODUCT MATERIAL

Subpart A—General Information

§ 31.1 Purpose and scope.

* * * * *

■ 11. In § 31.4, revise paragraph (b) and add paragraph (c)(2) to read as follows:

§ 31.4 Information collection requirements: OMB approval.

* * * * *

(b) The approved information collection requirements contained in this part appear in §§ 31.5, 31.8, 31.11, 31.12, 31.13, 31.14, 31.15, 31.16, 31.17, and 31.18.

(c) * * *

(2) In § 31.13, NRC Form 1003 is approved under control number 3150–XXXX.

* * * * *

■ 12. Add subpart B, before § 31.5, and revise paragraphs (c)(14) and (15) to read as follows:

Subpart B—General Licenses

§ 31.5 Certain detecting, measuring, gauging, or controlling devices and certain devices for producing light or an ionized atmosphere.^[2]

* * * * *

c. * * *

(14) Shall report changes to the mailing address for the location of use (including change in name of general licensee) within 30 days of the effective date of the change by electronic submission such as Electronic Information Exchange, email to *GLTS.Resource@nrc.gov*, or CD-ROM; via mail to the Director, Office of Nuclear Material Safety and Safeguards, ATTN: GLTS, U.S. Nuclear Regulatory Commission, Washington, DC 20555–0001 for mail where a signature is not required; or via mail to the Director, Office of Nuclear Material Safety and Safeguards, ATTN: GLTS, U.S. Nuclear Regulatory Commission, 11555

Rockville Pike, Rockville, MD 20852–2738 for signature required correspondence. For a portable device, a report of address change is only required for a change in the device's primary place of storage. Electronic submissions must be made in a manner that enables the NRC to receive, read, authenticate, distribute, and archive the submission, and process and retrieve it a single page at a time. Detailed guidance on making electronic submissions can be obtained by visiting the NRC's website at *https://www.nrc.gov/site-help/e-submittals.html*; by email to *MSHD.Resource@nrc.gov*; or by writing the Office of the Chief Information Officer, U.S. Nuclear Regulatory Commission, Washington, DC 20555–0001. The guidance discusses, among other topics, the formats the NRC can accept, the use of electronic signatures, and the treatment of nonpublic information.

(15) May not hold devices that are not in use for longer than 36 months. If devices with shutters are not being used, the shutter must be locked in the closed position. The testing required by paragraph (c)(2) of this section need not be performed during the period of storage only. However, when devices are put back into service or transferred to another person, and have not been tested within the required test interval, they must be tested for leakage before use or transfer and the shutter tested before use. Devices kept in standby for future use are excluded from the 36 month time limit if the general licensee performs semi-annually physical inventories of these devices while they are in standby.

■ 13. In § 31.11, revise paragraphs (a)(3), (a)(4), (a)(6) and (a)(8) to read as follows:

§ 31.11 General license for use of byproduct material for certain in vitro clinical or laboratory testing.

(a) * * *

(1) * * *

(3) Carbon-14, in units not exceeding 100 microcuries each for use in in vitro clinical or laboratory tests not involving internal or external administration of byproduct material, or the radiation therefrom, to human beings or animals.

(4) Hydrogen-3 (tritium), in units not exceeding 1000 microcuries each for use in in vitro clinical or laboratory tests not involving internal or external administration of byproduct material, or the radiation therefrom, to human beings or animals.

(5) * * *

(6) Selenium-75, in units not exceeding 100 microcuries each for use in in vitro clinical or laboratory tests not

involving internal or external administration of byproduct material, or the radiation therefrom, to human beings or animals.

(7) * * *

(8) Cobalt-57, in units not exceeding 100 microcuries each for use in in vitro clinical or laboratory tests not involving internal or external administration of byproduct material, or the radiation therefrom, to human beings or animals.

* * * * *

■ 14. Add subpart C, consisting of §§ 31.13 through 31.18, to read as follows:

Subpart C—Standard General Licenses

31.13 Standard General License Requirements.

31.14 Standard General License for Certain Fixed Gauging.

31.15 Standard General License for Portable Gauging.

31.16 Standard General License for Certain Medical Uses.

31.17 Standard General License for Certain Analytical Equipment Including Electron Capture Detectors, X-Ray Fluorescence Devices, and Ion Generators.

31.18 Standard General License for Certain In Vitro Testing.

Subpart C—Standard General Licenses

§ 31.13 Standard General License Requirements.

(a) Any person, as defined in § 30.4 of this chapter, engaging in standard general license activities described in § 31.14–31.18 of this part, shall:

(1) At least 30 calendar days prior to acquiring, receiving, possessing, using, or transferring byproduct material, file a submittal containing an NRC Form 1003, with the Commission using a communication method defined in § 30.6(a) of this chapter;

(2) Receive from the Commission, a validated standard general license in the form of a copy of NRC Form 1003 with a registration number assigned; and

(3) Pay the appropriate fee as prescribed in § 170.31 of this chapter. No fee will be required to accompany an amendment of a standard general license, except as provided in § 170.31 of this chapter.

(b) A standard general licensee under this subpart shall:

(1) Limit the number of locations of use to no more than five locations of use, excluding temporary job sites as permitted by the standard general licenses in § 31.15 and § 31.17 of this part.

(2) File a submittal containing an NRC Form 1003, with the Commission using a communication method defined in § 30.6(a) of this chapter, at least 30 calendar days prior to the effective date

of any of the following changes to the most recently validated NRC Form 1003: the licensee's direct ownership, controlling ownership of the licensed activities, name of the licensee, location of use addresses, mailing address, Radiation Safety Officer, or materials.

(i) If licensed activities are transferred or assigned to a different ownership, each licensee authorized to possess radioactive material, with a half-life greater than 120 days, in an unsealed form, shall transfer the following records to the new licensee and the new licensee will be responsible for maintaining these records until the license is terminated: Records of disposal of licensed material made under §§ 20.2002 (including burials authorized before January 28, 1981¹), 20.2003, 20.2004, 20.2005; and Records required by § 20.2103(b)(4) of this chapter.

(3) Pay an annual fee as prescribed in § 171.16 of this chapter.

(c) A person licensed under this subpart shall restrict the possession of licensed material:

(1) To a total quantity below unity for the radionuclides listed in 10 CFR part 37 appendix A, calculated using the Category 2 activity thresholds specified in the table, according to 10 CFR part 37 appendix A;

(2) To quantities below the minimum limits for unsealed and/or sealed material as specified in § 30.35(d) of this chapter for which decommissioning financial assurance is required; and

(3) To quantities below the limits specified in § 30.72 of this chapter, in the form of unsealed material and foil or plated sources, above which, consideration of the need for an emergency plan for responding to a release of licensed material is required.

(d) A person licensed under this subpart shall not abandon byproduct material.

(e) A person licensed under this subpart shall not export the byproduct material except in accordance with part 110 of this chapter.

(f)(1) Within 60 days of the occurrence of any of the following, each licensee shall provide notification to the Commission by filing a submittal containing an NRC Form 1003 with the Commission using a communication method defined in § 30.6(a) of this chapter any of the following and indicate which approach under paragraph (f)(2) of this section the licensee intends to pursue:

(i) The licensee has decided to permanently cease principal activities, at the entire site or in any separate building or outdoor area that contains residual radioactivity such that the

building or outdoor area is unsuitable for release in accordance with Commission requirements, or

(ii) No principal activities under the license have been conducted for a period of 36 months, or

(iii) No principal activities have been conducted for a period of 36 months in any separate building or outdoor area that contains residual radioactivity such that the building or outdoor area is unsuitable for release in accordance with NRC requirements.

(2) When notification is made pursuant to paragraph (f)(1) of this section, the licensee must—

(i) Within 45 days, submit a request to delay initiation of decommissioning activities consistent with paragraph (g) of this section, or

(ii) Immediately begin decommissioning its site, or any separate building or outdoor area that contains residual radioactivity so that the building or outdoor area is suitable for release in accordance with NRC requirements, or

(iii) Within 12 months, submit a decommissioning plan, if required by paragraph (f)(3) of this section, and begin decommissioning upon approval of that plan.

(3)(i) A decommissioning plan must be submitted if the procedures and activities necessary to carry out decommissioning of the site or separate building or outdoor area have not been previously approved by the Commission and these procedures could increase potential health and safety impacts to workers or to the public, such as in any cases described in § 30.36(g)(1)(i)–(iv).

(ii) The Commission may approve an alternate schedule for submittal of a decommissioning plan required pursuant to paragraph (f)(2) of this section if the Commission determines that the alternative schedule is necessary to the effective conduct of decommissioning operations and presents no undue risk from radiation to the public health and safety and is otherwise in the public interest.

(iii) Procedures such as those listed in paragraph (f)(3)(i) of this section with potential health and safety impacts may not be carried out prior to approval of the decommissioning plan.

(iv) The proposed decommissioning plan for the site or separate building or outdoor area must include the information listed in § 30.36 (g)(4)(i)–(vi):

(v) The proposed decommissioning plan will be approved by the Commission if the information therein demonstrates that the decommissioning will be completed as soon as practicable and that the health and safety of

workers and the public will be adequately protected.

(4) Licensees shall complete decommissioning of the site or separate building or outdoor area as soon as practicable but no later than 24 months following the initiation of decommissioning.

(5) When decommissioning involves the entire site, the licensee shall request license termination as soon as practicable but no later than 24 months following the initiation of decommissioning.

(6) As the final step in decommissioning, the licensee shall—

(i) Certify the disposition of all licensed material, including accumulated wastes, by filing a submittal containing an NRC Form 1003, with the Commission using a communication method defined in § 30.6(a) of this chapter; and

(ii) Conduct a radiation survey of the premises where the licensed activities were carried out and submit a report of the results of this survey, unless the licensee demonstrates in some other manner that the premises are suitable for release in accordance with the criteria for decommissioning in 10 CFR part 20, subpart E. The licensee shall, as appropriate—

(A) Report levels of gamma radiation in units of millisieverts (microroentgen) per hour at one meter from surfaces, and report levels of radioactivity, including alpha and beta, in units of megabecquerels (disintegrations per minute or microcuries) per 100 square centimeters—removable and fixed—for surfaces, megabecquerels (microcuries) per milliliter for water, and becquerels (picocuries) per gram for solids such as soils or concrete; and

(B) Specify the survey instrument(s) used and certify that each instrument is properly calibrated and tested.

(g) The Commission may grant a request to extend the time periods established in paragraph (f). The schedule for decommissioning set forth in paragraph (f) of this section may not commence until the Commission has made a determination on the request. The request must include the following:

(1) Discussion of the business need for continued possession or authorization of licensed material or how the request is otherwise in the public interest.

(2) Discussion of the health and safety plan that will be in effect during the extension period.

(3) Discussion of the current decommissioning cost estimate and the potential for increased decommissioning costs if an extension of the time period is approved.

(4) A timeframe for which principal activities will resume, which shall not exceed 36 months from the date that principal activities ceased at the site, separate building, or outdoor area, as provided for in (f)(1)(ii) and (f)(1)(iii) of this section.

(5) A commitment that, should principal activities not resume within the timeframe specified in paragraph (g)(4), the licensee shall submit provide notification to the NRC consistent with paragraph (f) of this section.

(h) A licensee shall terminate a standard general license with the Commission by filing a submittal containing an NRC Form 1003, with the Commission using a communication method defined in § 30.6(a) of this chapter. The standard general license will be terminated by written notice to the licensee when the Commission determines that:

(i) Byproduct material has been properly disposed;

(ii) Reasonable effort has been made to eliminate residual radioactive contamination, if present; and

(iii)(A) A radiation survey has been performed which demonstrates that the premises are suitable for unrestricted release in accordance with the criteria for decommissioning in 10 CFR part 20, subpart E; or

(B) Other information submitted by the licensee is sufficient to demonstrate that the premises are suitable for unrestricted release in accordance with the criteria for decommissioning in 10 CFR part 20, subpart E.

(iv) Records required by § 30.51 (d) and (f) of this chapter have been received.

§ 31.14 Standard General License for Certain Fixed Gauging.

(a)(1) Provided that the provisions of paragraph (b) of this section have been met, a general license is hereby issued to commercial and industrial firms and research, educational and medical institutions, individuals in the conduct of their business, and Federal, State or local government agencies to acquire, receive, possess, use, or transfer byproduct material contained in devices designed and manufactured for the purpose of detecting, measuring, gauging or controlling thickness, density, level, interface location, or qualitative or quantitative chemical composition in accordance with the provisions of paragraph (c) of this section.

(2)(i) The provisions of paragraph (a)(1) of this section apply to byproduct material contained in devices which are registered in the Sealed Source and Device Registry with the Commission

under § 32.210, as defined in § 32.2 of this chapter, or with an Agreement State, with the principle use codes D—gamma gauges or E—beta gauges.

(ii) The provisions of paragraph (a)(1) of this section apply to the use specifically licensed devices that are distributed in accordance with § 30.41 of this chapter.

(3) The provisions of paragraph (a)(1) of this section apply for use of these materials at fixed locations listed on the most recent NRC Form 1003 provided to the Commission in accordance with § 31.13 of this part.

(4) The provisions of paragraph (a)(1) of this section do not authorize the manufacture, initial transfer or distribution, or import of devices containing byproduct material.

(b)(1) The general licenses provided in this section are subject to all the provisions of the Act, now or hereafter in effect, and to all applicable rules, regulations, and orders of the Commission including the provisions of §§ 30.7, 30.8, 30.9, 30.10, 30.11, 30.31, 30.34, 30.35, 30.41, 30.50 through 30.64 of this chapter; §§ 31.1 through 31.4 of this part; §§ 31.21 through 31.23 of this part; and to the provisions of 10 CFR parts 19, 20, 21, and 71.

(2) Any person engaging in activities under the general licenses provided in this section need not comply with § 30.34(b) of this chapter.

(3) In addition, any person engaging in activities under the general licenses provided in this section shall comply with the requirements in § 31.13 of this part.

(c) A licensee shall —

(1)(i) Limit the use of sealed sources to those registered either with Commission under § 32.210 of this chapter or with an Agreement State.

(ii) Ensure sealed sources are incorporated in compatible devices, by manufacturer and model, and limited to use as specified in the Sealed Source and Device Registry for the devices manufacturer and model.

(iii) Ensure the activity of byproduct material in sealed sources is limited to the activity listed in the Sealed Source and Device Registry for the associated devices manufacturer and model.

(2)(i) Appoint and designate, in writing, a radiation safety officer responsible for having knowledge of the appropriate regulations and requirements and the authority for taking required actions to comply with appropriate regulations and requirements. The general licensee, through this individual, shall ensure the day-to-day compliance with appropriate regulations and requirements. This appointment does not relieve the

general licensee of any of its responsibility in this regard.

(ii) Maintain a record of an individual's training and experience, and appointment as the Radiation Safety Officer for 5 years following their last day in the role.

(3)(i) Designate, in writing, individuals to work as authorized users, who have sufficient training and experience to use and supervise the use of licensed materials. Additionally, Licensee staff engaged in leak test sample collection, on-off mechanism testing, and routine maintenance shall be trained on the licensee's procedures and the manufacturer's written recommendations and instructions for the relevant activities.

(ii) Maintain the designation and record of the individuals' training and experience for 5 years after the individuals last works as an Authorized User for the licensee.

(4) Ensure licensed materials authorized by paragraph (a) of this section are used by, or under the supervision of, individuals who have been designated as authorized users by paragraph (c)(3) of this section.

(5)(i) Operate each device containing byproduct material within the manufacturer's specified temperature and environmental limits such that shielding and shutter mechanisms of the source holder are not comprised.

(ii) Ensure sealed sources containing licensed material are not opened and sources are not removed from source holders.

(iii) Ensure only the gauge manufacturer, distributor, or other person authorized by the Commission or an Agreement State will perform nonroutine maintenance such as installation, initial radiation survey, repair and maintenance of radiological safety components, relocation, replacement, alignment, removal from service, and disposal of sealed sources.

(6)(i) Prepare an evaluation demonstrating that unmonitored individuals are not likely to receive a radiation dose in excess of the limits in § 20.1502 of this chapter; or

(ii) Develop, implement, and maintain a program for individual monitoring of external and internal occupational dose in accordance with § 20.1502 of this chapter.

(iii) maintain records of the evaluation described in (6)(i) for 3 years following the last use of licensed material by unmonitored individuals.

(iv) maintain records of individual monitoring results in accordance with § 20.2106 of this chapter.

(7)(i) Ensure any radiation detection instruments used to perform on-off